

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No:
Date Filed:

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MOSES PACHECO,

Plaintiff,

Plaintiff designates
BRONX COUNTY
as the place of trial

-against-

The basis of the venue is:
Place where the cause of
action arose

SUMMONS

THE CITY OF NEW YORK and DETECTIVE
KRISTOPHER PERSAUD (Shield # 3285),

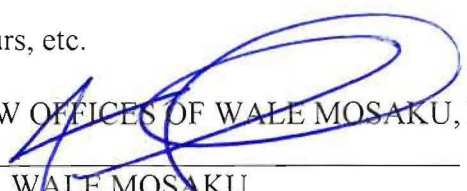
Defendant.
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To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's Attorney within twenty days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear, judgment will be taken against you by default for the relief demanded in the complaint set forth below.

Dated: Brooklyn, New York
February 22, 2021

Yours, etc.


LAW OFFICES OF WALE MOSAKU, P.C.

BY: WALE MOSAKU
Attorney for the Plaintiff
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

THE CITY OF NEW YORK
C/O New York City Corporation Counsel
100 Church Street
New York, N.Y. 10007

Det. Kristopher Persaud (Shield # 3285)
NYPD 45th Police Precinct
2877 Barkley Avenue
Bronx, New York 10465

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X Index No.
MOSES PACHECO,

Plaintiff,

-against-

COMPLAINT

THE CITY OF NEW YORK and DETECTIVE
KRISTOPHER PERSAUD (Shield # 3285),

Defendant.

-----X
MOSES PACHECO (hereinafter "plaintiff"), by his attorney(s) THE LAW OFFICES OF
WALE MOSAKU, P.C., complaining of the defendants THE CITY OF NEW YORK
(hereinafter referred to as "the City") and DETECTIVE KRISTOPHER PERSAUD
(Shield # 3285) (hereinafter referred to as "Persaud"), upon information and well founded
belief, alleges as follows:

NATURE OF THE ACTION

1. This is an action at law that sounds in the intentional tort of false arrest/false imprisonment.
2. Furthermore, this is an action at law to redress the deprivation of rights secured to the plaintiff under color of statute, ordinance, regulation, custom; and/or to redress the deprivation of rights, privileges, and immunities secured to the plaintiff by the Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States; and by Title 42 U.S.C. §§ 1982, 1983 and 1985; and arising under the laws and statutes of the City and/or State of New York.

THE PARTIES

3. Plaintiff is an African-American male of full age.
4. At all relevant times, the CITY was/is a municipal corporation of the State of New York, and was/is the employer of PERSAUD, through

its Police Department, namely the New York City Police Department (hereinafter referred to as "NYPD"), and the actions of PERSAUD complained of herein were done as part of the custom, practice, usage, regulation and/or direction of the City of New York.

5. At all times herein, PERSAUD was employed as a law enforcement officer of the City of New York, State of New York, was acting under the color of his official capacity, and his acts were performed under color of the statutes and ordinances of the City of New York and/or the State of New York.
6. At the time of the incident complained of herein, PERSAUD was in the course of his duties. As such, the City is responsible for PERSAUD's actions, based upon the theory of *respondeat superior*.

SATISFACTION OF THE PROCEDURAL PREREQUISITES FOR SUIT

7. All conditions precedent to filing of this action have been complied with; on October 22, 2020, within ninety days after the claim(s) alleged in this complaint arose, a written notice of claim, sworn to by the plaintiff and/or his representative, was served upon the defendant by personal delivery of the notice in duplicate, to the person designated by law as one to whom a summons issued against such party may be delivered in an action in the applicable Courts. Plaintiff's claim was assigned Claim No. 2020PI026351.
8. At least thirty days have elapsed since the service of the above-mentioned notice of claim, and adjustment or payment of the claim has been neglected or refused.
9. This action, pursuant to New York State and City Law, has been commenced within one year and ninety days after the happening of the event upon which the claim is based.

FACTUAL ALLEGATIONS

10. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 9 of this complaint as though fully set forth herein.

11. On July 25, 2020, at approximately 02:30 p.m., within the premises of the 45th Police Precinct located at 2877 Barkley Ave, Bronx, New York 10465 ("subject location") the plaintiff was caused by PERSAUD to be unlawfully and wrongfully arrested by non-party officer DETECTIVE JOHN SOTO (Tax # 945023; Shield # 6283) (hereinafter referred to as "SOTO").
12. Prior to the time of the plaintiff's arrest, PERSAUD, who was investigating a robbery incident, had issued an investigative card ("I-Card"), and disseminated same within the NYPD's city-wide internal computer communicative system, requiring that any NYPD officer who came into contact with the plaintiff arrest him, on the basis that probable cause existed for the arrest of the plaintiff.
13. However, no one had filed a complaint against the plaintiff accusing him of any crime or offense. And there was no probable cause for PERSAUD to believe that the plaintiff had committed a crime or offense.
14. In addition to issuing the I-card, PERSAUD had contacted the plaintiff, firstly by showing up at the plaintiff's residence and later by telephone, and directed the plaintiff to appear at the 45th precinct in order to be arrested for the crime of grand larceny.
15. The plaintiff dutifully appeared at the premises of the 45th precinct on July 25, 2020, at 02:30.
16. Upon arrival at the 45th Precinct, the plaintiff was informed that PERSAUD was not present, even though PERSAUD had been informed by the plaintiff's representative that the plaintiff was going to appear at the precinct on that date and at that time.
17. As such, the plaintiff's arrest was processed by SOTO, upon approval by non-party SERGEANT DANG NGUYEN (hereinafter referred to as "NGUYEN").

18. The plaintiff was issued with a Desk Appearance Ticket (DAT) by SOTO at approximately 05:20 p.m. The Desk Appearance Ticket Serial # was 045-05033.
19. Pursuant to the DAT, the plaintiff was required to appear in Bronx Criminal Court located at 215 161st Street, Bronx, New York 10451 at 09:00 a.m. on October 23, 2020. The plaintiff was charged with P.L. 155.30 (01). The plaintiff's arrest number was B20619570.
20. When the plaintiff appeared in court on October 23, 2020, he was informed by the Court that the Bronx County District Attorney had declined to prosecute the matter.
21. At the time of the above-referenced incident, PERSAUD was employed by The City of New York, and was in the course of his duties when he committed the above-referenced wrongful and intentional acts against the plaintiff. As such, the City of New York is responsible for PERSAUD's actions, based upon the theory of *respondeat superior*.

CAUSE(S) OF ACTION: FALSE ARREST AND FALSE IMPRISONMENT

PURSUANT TO 42 U.S.C § 1983/NEW YORK STATE LAW

22. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 21 of this complaint as though fully set forth herein.
23. The above-described respective arrest, detention and imprisonment of the plaintiff by the non party police officers, which was directly based upon the issuance and dissemination of an I-Card by PERSAUD was without just or probable cause, and without any warrant or legal process directing or authorizing the plaintiff's arrest or subsequent detention.
24. As a result of plaintiff's above-described false arrest and detention, he has been caused to suffer humiliation, great mental and physical anguish, embarrassment and scorn among those who know him, was prevented from attending to his necessary affairs, and has been

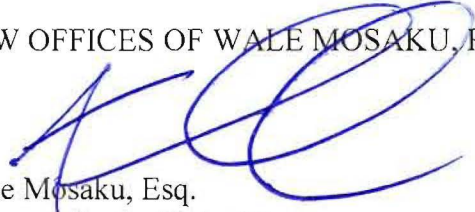
caused to incur legal expenses, and has been otherwise damaged in his character and reputation.

25. PERSAUD was at all material times acting within the scope of his employment, and as such, the defendant City is vicariously liable for PERSAUD's unlawful acts towards the plaintiff as described above.
26. Consequently, the plaintiff has been damaged and hereby demands compensatory damages in an amount to be proven at trial against the defendant.

WHEREFORE, plaintiff prays for judgment against the defendant, as follows: for compensatory damages in an amount to be proven at trial; for costs and expenses of suit herein, including his reasonable attorney's fees; for pre-judgment and post-judgment interest; all in a sum of money that exceeds the jurisdiction of all lower Courts, and for such other and further relief as this court deems just and appropriate.

Dated: Brooklyn, New York
February 22, 2021

LAW OFFICES OF WALE MOSAKU, P.C.

By: 

Wale Mosaku, Esq.
Attorney for the Plaintiff
25 Bond Street, 3rd Floor
Brooklyn, N.Y. 11201
(718) 243-0994

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X Index No.

MOSES PACHECO,

Plaintiff,

-against-

VERIFICATION

THE CITY OF NEW YORK and DETECTIVE
KRISTOPHER PERSAUD (Shield # 3285),

Defendants.

-----X

I, WALE MOSAKU, an attorney at law, duly admitted to practice in the Courts of this

State of New York, affirm under penalties of perjury that:

I am the attorney for the plaintiff in the above-entitled matter. That I have read the
foregoing COMPLAINT and know the contents thereof, and upon information and belief
deponent believes the matters alleged therein to be true.

The reason this verification is made by deponent and not by plaintiff is that the plaintiff
herein resides in a County other than the one in which I maintain my office.

The source of deponent's information and grounds of my belief are communications,
papers, reports and investigations contained in the file.

Dated: Brooklyn, New York
February 22, 2021

LAW OFFICES OF WALE MOSAKU, P.C.

BY: Wale Mosaku, Esq.
Attorney(s) for Plaintiff
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX Index No.

MOSES PACHECO,

Plaintiff(s) ,

-against-

THE CITY OF NEW YORK and DETECTIVE
KRISTOPHER PERSAUD (Shield # 3285) ,

Defendant(s) .

SUMMONS & COMPLAINT

LAW OFFICES OF WALE MOSAKU, P.C.
Attorney(s) for Plaintiff(s)
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

To:

Service of a copy of the within
is hereby admitted.

Dated:..... 20__

Attorney(s) for Defendant(s)
